

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2023-0312

Hearing Date: **June 5, 2026** **Department Eight** **9:00 a.m.**

Motion for leave to amend:

Defendant Hotel Winters' request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court's determination of the motion. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 ["Any matter to be judicially noticed must be relevant to a material issue"].)

Plaintiff Xinyao Zhou's motion for leave to file third amended complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 473, 576; Cal. Rules of Court, rule 3.1324.) Plaintiff's supporting declaration does not specify: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; [and] (3) When the facts giving rise to the amended allegations were discovered." (Cal. Rules of Court, rule 3.1324(b); see Zhou decl.; see also *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for protective order:

Defendant Hotel Winters, LLC's motion for protective order regarding, and stay of, discovery is **GRANTED IN PART**. (Code Civ. Proc., §§ 2019.030, 2030.090, 2031.060, 2033.080.) The Court finds that, contrary to the representations made in plaintiff's declaration submitted under Code of Civil Procedure section 2030.050, plaintiff's 110 special interrogatories are unwarranted. (Code Civ. Proc., § 2030.090, subd. (b)(2); Dillon decl., ¶¶ 4, 16, Exhibit A; Zhou decl., ¶ 20.) However, the Court recognizes that this is a complex case and plaintiff's allegations span over multiple years. (See, e.g., Dillon decl., ¶ 4, Exhibit A [plaintiff's declaration of necessity, ¶ 8].) Therefore, the Court permits plaintiff to serve no more than 50 special interrogatories on defendant. (Code Civ. Proc., § 2030.090, subd. (b).)

As there is an operative complaint and the Court is denying plaintiff's motion for leave to amend, the Court declines to stay discovery. (Code Civ. Proc., § 2017.010; Dillon decl., ¶ 2.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.